



Ethics and Essence of the Inner Bar

Professor Fabian Ajogwu, OFR, SAN

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by Professor Fabian Ajogwu, OFR, SAN

Esteemed Colleagues,

Congratulations on the elevation to the rank of Senior Advocate of Nigeria (SAN). This title is one of prestige and honour, and with this esteemed elevation, comes the call to uphold the highest standards of ethics, professionalism, and decorum within the Nigerian legal profession. As we gather to welcome new inductees, it is fitting to reflect on the responsibilities conferred with this rank and the essence of the Inner Bar where you are now positioned.

ETHICS, A CALL TO MORAL ACTION

Ethics relates to moral action, conduct, motive or character. Legal ethics is defined as the standard of minimally acceptable conduct within the legal profession, involving the duties that its members owe to one another, their clients, and the courts. A realisation at all times that what one is doing conforms to what ought to be done.

Ethics involves reflective evaluation or prescription concerning conduct. It is a standard or behavior or conduct which must comply with what is laid down as right or proper. Ethics as a field of study is a branch of philosophy that is concerned with what is morally good or bad, right or wrong. Traditionally, ethics has been undertaken to analyse, evaluate and develop normative moral criteria for dealing with moral problems. 'Ethics or "Morality"' is derived from the Greek word "Ethos" and "Morality" from the Latin word "Mores", which means habits or customs. It must however be emphasised that ethics or morality consists not merely in what is done by way of observing customs, rules or law but in what is done as a matter of principles and conviction about the rightness of doing what is right.¹

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THE ESSENCE OF THE OATH: DUTY TO COUNTRY, COURTS, AND THE LEGAL PROFESSION

The core values and responsibilities of this esteemed position are reflected in

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¹ Ajogwu, Fabian (2013), Law & Society, Centre for Commercial Law Development (CCLD), Lagos, Nigeria, 326 pages, ISBN: 978-978-936-620-0

the solemn oath taken upon elevation to the rank of Senior Advocate of Nigeria. Upon conferment, this declaration is made:

I, upon whom the rank of Senior Advocate of Nigeria has been duly conferred, declare that I will at all times well and truly serve the interest of the Federal Republic of Nigeria in the capacity of Senior Advocate of Nigeria and to that end will support and uphold the Constitution of the Federal Republic of Nigeria as by law established; that I will to the best of my ability well and truly assist the courts of law duly established in the Federal Republic of Nigeria in the performance of their judicial functions and that I will at all times uphold the dignity of the rank of Senior Advocate of Nigeria.

This oath is the foundation of our duties and the essence of our status as Senior Advocates. It begins with a commitment to “well and truly serve the interest of the Federal Republic of Nigeria.” That is a clear dedication of service to the nation, which recognises that it is the duty of a SAN to wield their expertise and influence for the greater good of the nation, above personal or parochial interests. The primary allegiance of a SAN is to the nation itself.

The oath continues with a pledge to “support and uphold the Constitution of the Federal Republic of Nigeria” – the supreme law of the land. SANs are expected to preserve the rule of law and ensure the provisions of the Constitution are respected, protected and upheld in all professional endeavours. The oath also includes a pledge to assist the courts in the performance of their judicial functions. This recognises the collaborative relationship of the bar and the bench in the administration of justice.

Finally, the oath binds SANs to uphold the dignity of their prestigious rank at all times. This demands a pledge to behave in such a way that reflects the highest standards of professionalism and decorum. SANs must conduct themselves in a manner that brings honour to their position. The dignity referred to in the oath speaks to the conduct and demeanour expected of SANs, both within and outside the courtroom.

The oath binds SANs to a higher standard of conduct, ethics, and service, setting them apart as leaders and exemplars within the legal profession.

ESSENCE OF THE INNER BAR

Members of the Inner Bar are held to a higher standard. At the core of being a Senior Advocate of Nigeria is the expectation of maintaining the highest levels of professional integrity and ethical conduct. In defining the essence of this esteemed status, key aspects to consider include:

ETHICS AT THE INNER BAR

The ethical conduct of Senior Advocates must be beyond reproach. SANs, like all legal practitioners in Nigeria, are bound by the Rules of Professional Conduct for Legal Practitioners 2023 and other relevant codes governing the legal profession in Nigeria. Particularly with the elevation to the rank of senior advocate, SANs are expected to lead by example, both in their legal practice and in their conduct. Their conduct serves as a model for others, particularly junior counsel, and any deviation from the expected ethical standards within the legal profession reflects not only on the individual but also on the rank as a whole.

In Nigeria, the Rules of Professional Conduct for Legal Practitioners regulate the conduct of legal practitioners and ensure that legal practitioners conform to the ethical standards in the profession. It stipulates amongst others that it is the general responsibility of a lawyer to uphold and observe the rule of law, promote and foster the course of justice, maintain a high standard of professional conduct, and not engage in any conduct which is unbecoming of a legal practitioner.²

INTERACTIONS WITH CLIENTS

Senior Advocates, just like all lawyers, must devote their full attention, energy, and expertise to serving the best interests of their clients.³ This involves maintaining diligence and integrity in the pursuit of the client's legal objectives. However, this duty to the client is not absolute and must be balanced with broader ethical considerations. Senior Advocates have a

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² Rule 1, Rules of Professional Conduct 2023

³ Rule 14, Rules of Professional Conduct 2023

higher duty to the court and the administration of justice, which may sometimes conflict with the wishes of their clients. In such situations, a Senior Advocate must have the courage and integrity to prioritise ethical conduct over their client's satisfaction. While representing their client, the lawyer must do so within legal and ethical bounds.⁴

Maintaining client confidence is of utmost importance, with limited exceptions in the prevention of crimes or as required by law.⁵ Senior Advocates, just like all lawyers, must disclose any potential conflicts of interest and avoid situations that may compromise their professional judgment.⁶ They may also withdraw from a case for good cause, such as conflicts of interest or client misconduct, but must do so responsibly.⁷

While the title of Senior Advocate of Nigeria signifies a high level of legal expertise, it is important to remember that no lawyer, regardless of their experience or accolades, is all-knowing. To ensure the best possible outcomes for their clients, senior advocates should only take on matters they are competent to handle and must invest the time and effort required to prepare thoroughly for every case.⁸ This not only serves the client's interests but also maintains the high standards expected of the Inner Bar.

RELATIONSHIP WITH OTHER LAWYERS

The Rules of Professional Conduct provide that lawyers should treat one another with respect, fairness, consideration and dignity, and shall not allow any ill-feeling between opposing clients to influence their conduct and demeanour towards one another or towards the opposing parties.⁹ This duty also extends in their capacity as Senior Advocates. Senior Advocates must show respect, courtesy and fairness to all colleagues, including junior lawyers. This includes being magnanimous with seating privileges when courtrooms are congested.

RESPECT TO THE COURT

It is the duty of every lawyer to treat the court with respect, dignity and honour.¹⁰ Senior Advocates of Nigeria are held to the highest standards of honesty, respect, and professionalism in their conduct before the courts. They must maintain the highest level of respect for the judiciary and court

⁴ Rule 15, Rules of Professional Conduct 2023

⁵ Rule 19, Rules of Professional Conduct 2023

⁶ Rule 17, Rules of Professional Conduct 2023

⁷ Rule 21, Rules of Professional Conduct 2023

⁸ Rule 16, Rules of Professional Conduct 2023

⁹ Rule 26(1), Rules of Professional Conduct 2023

¹⁰ Rule 31(1), Rules of Professional Conduct 2023

processes. Counsel, and by extension, Senior Advocates, owe the following duties to the Court:

- a. Duty to be punctual in court;
- b. Duty to attend all court sittings unless he had obtained leave of court to be absent;¹¹
- c. Duty to be dressed in a proper and dignified manner while in the courtroom;¹²
- d. Duty to know and maintain the correct decorum in court;¹³
- e. Duty to be fully prepared to go on with the case and not seek unnecessary adjournment thereby wasting the court's time;
- f. Duty to be candid and fair in their dealings with the court;¹⁴
- g. Duty to avoid trial publicity.

DRESSING ETHICS AT THE INNER BAR

Decorum and Carriage

The ethics expected of Senior Advocates of Nigeria also extends to the manner in which they present themselves. The decorum and carriage of SANs reflect not only on the individual but also on the entire institution of the Inner Bar and, by extension, on the legal profession as a whole. The Body of Senior Advocates of Nigeria (BOSAN) Code of Dressing & Decorum for Senior Advocates of Nigeria provides guidelines for the regulation of dressing ethics, courtroom decorum, etiquette and overall carriage expected of SANs.¹⁵

Dressing and Appearance

SANs have two primary forms of attire:

1. **The Working Robe (Court Dress):** This consists of a black silk gown, wing collar, bands, and a short wig. Male SANs are robed in a special black long-sleeved waistcoat with three sleeve buttons. Female SANs also wear a similar gown and wig, which emphasises uniformity across gender lines. It is this silk gown which gives rise to the colloquial reference to SANs as “Silks.” This working robe is worn during appearances in court and must always be distinct from the ceremonial robe.

¹¹ FRN v Abiola (1997) 2 NWLR (Pt. 488) 444 at 467

¹² Rule 36, Rules of Professional Conduct 2023

¹³ Rule 36, Rules of Professional Conduct 2023

¹⁴ Rule 32, Rules of Professional Conduct 2023

¹⁵ Body of Senior Advocates of Nigeria, 'Code of Dressing for Senior Advocates of Nigeria' (November 2019) <<https://bodyofsenioradvocatesng.org/wp-content/uploads/2019/11/SAN-Code-of-Dressing.pdf>> accessed 22 September 2024.

2. **The Ceremonial Robe:** For ceremonial occasions and special court sessions, SANs don a silk gown with gold-coloured trims at the edges and a full-bottomed wig. This attire is distinct from the working robe and reflects the solemnity and grandeur of the occasion.

SANs must wear the appropriate attire for each occasion. These robes must never be mixed. The ceremonial robes are reserved for special ceremonies or occasions of a sober nature, while the working robes are for court appearances. The robes reflect the dignity and respectability of this prestigious rank. This also extends to the black rosette which is compulsorily worn on ceremonial robes but is optional for the working robes.

For formal occasions, SANs may opt for black court breeches, black patent leather court shoes with cut-steel buckles, and black cotton tights. Alternatively, striped trousers and black court shoes are acceptable.



Ceremonial Robe (to be worn with full-bottomed wig, black rosette, and black shoes, with a pair of white hand gloves with at least one held, not worn)¹⁶

Working Robe (to be worn with short wig, and black shoes. Black rosette is optional)¹⁷

¹⁶ Body of Senior Advocates of Nigeria, 'SAN Code of Dressing' <<https://bodyofsenioradvocatesng.org/san-code-of-dressing/>> accessed 22 September 2024.

¹⁷ Ibid.

General Dressing Guidelines

- Robes should only be worn in court or court precincts
- After court sessions, SANs should avoid wearing bibs and wing collars outside of the court precincts.
- When being interviewed by the gentlemen of the Press, wigs should never be worn, and it is also preferable to remove the gown.
- Outside of court, SANs should maintain a professional and conservative dress code befitting their status.

Courtroom Etiquette

The presence of a SAN in court carries additional weight and responsibility. In the courtroom, members of the Inner Bar are expected to exhibit a higher level of decorum that reflects their leadership position within the profession. Senior Advocates are leaders of the bar, and as such, should set an example for junior lawyers in their courtroom conduct. This leadership extends to how they interact with all participants in the legal process – from officers of the court to opposing counsel, and witnesses to clients. A SAN's conduct should consistently demonstrate the highest levels of civility and professionalism.

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Some of the expectations required include:

- a. ***Punctuality:*** Senior Advocates should always arrive on time for court proceedings, making sure to offer a sincere apology and honest explanation to the court when unavoidably late. This respect for the court's time and proceedings sets an example for all legal practitioners and demonstrates the seriousness with which SANs must approach their duties.
- b. ***Avoidance of Public Disputes:*** Senior Advocates must maintain a calm and respectful demeanour in the courtroom. Disagreements with fellow SANs or other counsel should be completely avoided in open court or to the hearing of junior counsel and non-lawyers. Arguments in court should be presented with clarity and conviction, but always with deference to the court and respect for opposing counsel.

- c. *Neat and Proper Appearance:* SANs must always appear neat and presentable. Wigs and gowns must be worn properly and should not be removed in annoyance or disrespect within the courtroom.

Overall Carriage and Leadership

The ethics of the Inner Bar go beyond courtroom conduct. SANs are ambassadors of the legal profession, and their actions are closely observed both in and outside of the courtroom. Recognising that their behaviour reflects on the entire profession, SANs should conduct themselves appropriately in all public settings. Whether in their engagement with the media, appearance at professional events, or in their interactions with the public, SANs are expected to conduct themselves with dignity, calmness, and civility. A Senior Advocate's behaviour should consistently reflect the honour of their rank.

Senior Advocates must be particularly mindful of their interactions with the media. They should by all means avoid conducting cases through the media. Comments made outside the courtroom can have significant implications for ongoing cases and public perception of the legal system. They must exercise discretion in their public communications, avoiding commentary that could be seen as prejudicial to court proceedings or undermining the administration of justice. While SANs have the right to participate in public discourse, they must do so in a manner that maintains the dignity of their office.

Senior Advocates should carry themselves with dignity and restraint both in and out of court. They must always remember that their status as SANs represents the collective prestige of the Inner Bar and the legal profession as a whole.

CONCLUSION

Senior Advocates of Nigeria, by virtue of their oath and position, are standard-bearers for ethical conduct and professional excellence within the Nigerian legal profession. Adherence to the principles discussed above not only upholds the dignity of their rank but also shapes the perception of the

entire legal profession and the administration of justice in Nigeria. New inductees must internalise these ethical standards and embody the essence of the Inner Bar in every aspect of their professional and personal lives. The privilege of being a Senior Advocate of Nigeria comes with the weighty responsibility of being a leader in the legal profession and ensuring the continued respect of the Nigerian legal system and profession.

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